

Court No. - 37

Case :- WRIT - C No. - 7625 of 2020

Petitioner :- Dinesh Kumar Vishwakarma

Respondent :- Managing Director, (Dakashinanchal Vidyut Vitaran Khand) And 4 Others

Counsel for Petitioner :- Krishna Kant Vishwakarma, Ashwani Kumar

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C.

Hon'ble Abhinava Upadhya, J.

Hon'ble Shamim Ahmed, J.

The petitioner had earlier filed a writ petition being Writ Petition No. 48295 of 2017 raising a dispute with regard to electricity bills, which was disposed of by order dated 12.10.2017. The petitioner submits that on 16.10.2017, he filed a representation before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. It is submitted that the said representation is still pending and has not been decided in spite of the High Court's order and now a fresh demand notice has been issued.

The writ petition is disposed of with the observation that in case the petitioner files a fresh representation within one week from today along with a certified copy of this order before the Executive Engineer, the Executive Engineer shall consider and decide the same within two weeks thereafter.

For a period of three weeks no coercive action shall be taken against the petitioner pursuant to undated demand notice of Rs. 3,29,407/- (Annexure 8 to the writ petition) and the demand notice shall be abide by the final decision taken by the Executive Engineer.

Order Date :- 3.3.2020

Sunil Kr. Gupta

(Shamim Ahmed, J.) (Abhinava Upadhya, J.)